

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Index No.

THOMAS QUINN,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE POLICE
DEPARTMENT OF THE CITY OF NEW YORK,
P.O. BARBEE and P.O. MOUSSA,

Defendants.

Plaintiff Designates
Richmond County as
the place of trial

The basis of the
venue is Plaintiff's
Residence

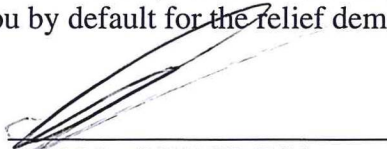
SUMMONS

Plaintiff's Residence:
25 Henderson Avenue, Apt. 1
Staten Island, New York 10301
County of New Richmond

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Staten Island, New York
September 22, 2020


ORIN J. COHEN, ESQ.
Attorney for Plaintiff
1162 Victory Boulevard
Staten Island, NY 10301
(718) 448-2889

Defendants' Addresses:

THE CITY OF NEW YORK – 100 Church Street, New York, New York 10007

THE POLICE DEPARTMENT OF THE CITY OF NEW YORK- One Police Plaza, New York, NY

P.O. BARBEE (SHIELD # 22173) – (121st Pct) 970 Richmond Avenue, Staten Island, NY 10314

P.O. MOUSSA (SHIELD # 31415) – (121st Pct) 970 Richmond Avenue, Staten Island, NY 10314

Upon your failure to appear, judgment will be taken against you by default.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

THOMAS QUINN,

Index No.

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, THE POLICE
DEPARTMENT OF THE CITY OF NEW YORK,
P.O. BARBEE and P.O. MOUSSA,

Defendants.

Plaintiff, complaining of the defendants, by his attorney, ORIN J. COHEN, ESQ. respectfully sets forth to this Court and alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

FIRST: That at all the times hereinafter mentioned, the plaintiff was a resident of the County of Richmond, City and State of New York.

SECOND: That the defendant, THE CITY OF NEW YORK, (hereinafter referred to as "CITY") was at all times hereinafter mentioned, a domestic municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

THIRD: That, upon information and belief, at all times herein mentioned, the defendant P.O. BARBEE was and still is a police officer working in the County of Richmond, City and State of New York.

FOURTH: That, upon information and belief, at all times herein mentioned, the defendant P.O. MOUSSA was and still is a police officer working in the County of Richmond, City and State of New York.

FIFTH: That plaintiff served a Notice of Intention to Make A Claim on the defendant CITY on December 23, 2019.

SIXTH: That the defendant CITY held a statutory hearing of this plaintiff on February 28, 2020.

SEVENTH: That at least 30 days have elapsed since the demands or claims in which these actions herein were brought and presented to the defendant, CITY for judgment and the defendant has refused and neglected to make an adjustment or payment thereof 30 days after said presentation. Not more than one year and ninety days has elapsed since the accrual of said cause of action.

EIGHTH: That, upon information and belief, at all times herein mentioned, the defendant THE POLICE DEPARTMENT OF THE CITY OF NEW YORK was at all times hereinafter mentioned, a domestic municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

NINTH: That on October 5, 2019, the plaintiff was lawfully at the location of Forest Avenue and Grand Avenue; located in the County of Richmond, City and State of New York.

TENTH: That on October 5, 2019, at approximately 4:45 p.m., the plaintiff was at the location of Forest Avenue and Grand Avenue in the County of Richmond, City and State of New York, when the defendants, P.O. BARBEE and P.O. MOUSSA falsely arrested the plaintiff. THE POLICE DEPARTMENT OF THE CITY OF NEW YORK improperly arrested the plaintiff when he had not committed a crime, nor did he do any act to warrant an arrest. The charges were dropped on November 21, 2019. That the defendant THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, as an agent, servant and/or employee of the defendant unlawfully and wrongfully arrested the plaintiff. The plaintiff was falsely arrested, detained against his will, maliciously prosecuted, suffered severe mental anguish, emotional distress, humiliation and embarrassment, loss of civil right and personal freedom and privacy; unnecessary expenses for false arrest, detainment, imprisonment and inability to conduct normal activities, detained him improperly, maliciously prosecuted him, as well as embarrassment in the community and embarrassment and impact on his reputation. Further, the defendants are liable for punitive damages as well as violation of 1983 of the United States Code Annotated; the defendant improperly arrested and detained the plaintiff. That the defendant CITY, its agents, servants and/or employees were negligent, careless, and reckless, and the POLICE DEPARTMENT OF THE CITY OF NEW YORK failed to properly supervise and train these individuals and such actions were gross negligent, gross careless, and gross reckless, and in violation of Section 1983, also causing embarrassment to the community, harm to his reputation, restraining him of his liberty, and exacerbation of injuries to cause serious and permanent physical injuries.

ELEVENTH: That the plaintiff is not subject to limitations of Article XVI of the CPLR pursuant to exclusions therein.

TWELFTH: That by reasoning of the foregoing, the plaintiff has been caused to be falsely imprisoned, maliciously prosecuted and deprived of his constitutional right. The Plaintiff was damaged in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

THIRTEENTH: That the plaintiff repeats each and every allegation set forth in Paragraphs "FIRST" through "TWELFTH," as if more fully set forth herein.

FOURTEENTH: That the defendants acted in such a fashion to improperly detain the plaintiff.

FIFTEENTH: That the plaintiff was unlawfully and improperly arrested after being falsely accused of violating Penal Law Sections 160.10; 160.05 and 205.30.

SIXTEENTH: That the defendants acted in an intentional reckless and negligent manner in improperly and falsely arresting the plaintiff.

SEVENTEENTH: That the defendants improperly treated the plaintiff in the manner of the arrest, handling of the arrest, prosecuting the arrest and threatening the plaintiff, thus causing her severe emotional and physical injuries as well as punitive damages.

EIGHTEENTH: That by reason of the premises as aforesaid, the plaintiff is disabled due to the injuries upon information believed of a permanent character and by reason thereof the plaintiff is prevented from following his usual duties and it is believed in the future will be prevented to follow his usual duties, all to the plaintiff's damages in a sum which exceeds the jurisdictional limitations of the lower courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

NINETEENTH: That the plaintiff repeats each and every allegation set forth in Paragraphs "FIRST" through "EIGHTEENTH," as if more fully set forth herein.

TWENTIETH: That the plaintiff was denied his freedom and treated in such a fashion to deny his basic liberty and civil rights.

TWNETY-FIRST: That by reason of the foregoing as aforesaid, the plaintiff is disabled due to the injuries upon information believed of a permanent character and by reason thereof the plaintiff is prevented from following his usual duties and it is believed in the future will be prevented to follow his usual duties, all to the plaintiff's damages in a sum which exceeds the jurisdictional limitations of the lower courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

TWENTY-SECOND: That the plaintiff repeats each and every allegation set forth in Paragraphs "FIRST" through "TWENTY-FIRST," as if more fully set forth herein.

TWENTY-THIRD: This is a civil rights action in which the plaintiff, THOMAS QUINN, seeks relief from the defendants' violation of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. §1983, and of rights secured by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and for rights secured under the laws and Constitution of the State of New York.

TWENTY-FOURTH: That, by reason of the foregoing, the plaintiff, THOMAS QUINN, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, the plaintiff, THOMAS QUINN, demands judgment against the defendants in the First Cause of Action in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York, in the Second Cause of Action in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York, in the Third Cause of Action in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York, and in the Fourth Cause of Action in an amount which exceeds the jurisdictional

limits of the lower courts of the State of New York together with the costs and disbursements of this action.

Dated: Staten Island, New York
September 22, 2020

Yours, etc.,



ORIN J. COHEN, ESQ.
Attorney for Plaintiff
1162 Victory Boulevard
Staten Island, New York 10301
(718) 448-2889

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SUMMONS AND COMPLAINT

LAW OFFICE OF ORIN J. COHEN

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1162 Victory Boulevard
Staten Island, New York 10301
(718) 448-2889
